

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act eliminating discrimination against municipalities who are unable to meet certain zoning requirements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/30/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>8/8/2025</i>

SENATE No.

By Mr. O'Connor, a petition (accompanied by bill) (subject to Joint Rule 12) of Patrick M. O'Connor and Colleen M. Garry for legislation to eliminate discrimination against municipalities who are unable to meet certain zoning requirements. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act eliminating discrimination against municipalities who are unable to meet certain zoning requirements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3A of chapter 40A of the General Laws, as appearing in the 2012
2 Official Edition, is hereby amended by striking out the entirety of subsection (b) and replacing it
3 with the following:-

4 (b) An MBTA community that fails to comply with this section shall not lose eligibility
5 for any state grants or other funding opportunities.